

Shailesh Kumar Paswan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2014 · Criminal Misc. Writ Petition No. 13435 of 2014 · Criminal Misc. Writ Petition No. 13435 of 2014 · **FIR not quashed; arrest under CrPC 41/41-A; compounding via Code**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence cannot be quashed. Where arrest has not yet been made and the offence cannot attract more than seven years, police must comply with CrPC ss. 41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Shailesh Kumar Paswan approached the Allahabad High Court to quash the FIR dated 24 June 2014, registered as Case Crime No. 390 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Reoti, District Ballia. He had not been arrested. Counsel submitted that a proved s.135 offence cannot attract more than seven years' imprisonment, so arrest should not be mechanical, and that the offence is compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

FIR quash, arrest safeguards, compounding

HOLDING

An FIR under s.135 that discloses a cognizable offence is not quashed. If arrest is to be made and the offence will not entail more than seven years, police must comply with CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the accused may seek the remedy under the Electricity Supply Code, 2005. ¶ 1